in April 2015. This reinforced the idea that ISPs were basically no different from, for example, phone companies by designating them as "telecommunications services" rather than "information services." ISPs were now obliged to provide equal internet access to all. The Order established clear guidelines, or "bright-line rules," that the ISPs had to abide by: no blocking, no throttling, increased transparency, and no paid prioritization.

Pros and cons

Before and after the 2015 Open Internet Order, debate raged over whether net neutrality should be protected by law. Should the US government treat the internet as a public good, subject to regulation as a public utility? Or should it allow the free market to set terms and conditions for internet access?

The supporters of legislation contend that benign government regulation is an essential condition for the advance of the internet by giving the greatest benefits to the largest number. The internet is too important to be left to unfettered free markets. Almost any ISP has a vested commercial interest in promoting or speeding certain sites and suppressing or blocking others. If ISPs favor those who pay most, those who pay least would be relegated to an internet hinterland. In addition, in rural areas where the choice of ISP is limited or nonexistent, there is an obvious temptation for any ISP to abuse what is essentially a monopoly.

Another objection to self-regulation is that any two-track network (see diagram, right) amounts to a form of censorship, if ISPs determine what can and cannot be viewed purely on the basis of their own short-term financial advantage. ISPs could also wield political influence—for example, by blocking websites.

Opponents of regulation no less forcefully argue that, since its sudden emergence in the 1990s, the internet has proved itself perfectly capable of self-regulation. ISPs argue for a two-track network governed by the free market. If, for example, a video-streaming service responsible for more than 30 percent of all bandwidth use in the US crowds out other content providers who are all using the same ISPs, why should it not have to pay more for its disproportionate use of limited bandwidth? In addition, any user of the internet, whether domestic or commercial, could then choose, if they want, to pay more for a faster, higher-quality service. Increased revenues to ISPs would result in greater investment in new infrastructure, to the long-term advantage of all.

Ironically, some competing corporations, using immense resources and each with their own commercial priorities, have clashed over the net neutrality issue. Google, for example, is a content provider but

> This is no more a plan to regulate the internet than the First Amendment is a plan to regulate free speech.
>
> **Tom Wheeler**
> **FCC chairman, 2015**

Tom Wheeler, chairman of the FCC under President Obama, is a champion of net neutrality and believes regulation is necessary.

Comcast and BitTorrent

One compelling argument against net neutrality is that it is difficult to enforce. Long before the FCC's 2017 reversal of net neutrality, ISPs had often illegally slowed traffic that they considered was consuming too much bandwidth.

The United States' most famous net neutrality case was in 2008. For several years, Comcast had systematically obstructed, or made effectively impossible, transfers of data via BitTorrent (a file-sharing service used to download large files such as movies). Comcast claimed that they slowed BitTorrent transfers only during periods of high-density traffic, but they were slowing the transfers more or less permanently. Campaigners asserted this was "blocking free choice on the internet."

The FCC censured Comcast for violating net neutrality by throttling BitTorrent and, in 2008, issued a cease-and-desist order. Comcast in turn sued the FCC in *Comcast Corp.* v. *FCC* and, in 2012, the District of Columbia Court of Appeals found against the FCC.